

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Elizabeth Johnson	Team: Team # 3	CCRB Case #: 200919088	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 12/14/2009 7:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/14/2011	Precinct: 73
Date/Time CV Reported Mon, 12/14/2009 11:54 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/14/2009 11:54 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dion Gaspard	29802	945749	PSA 2
2. POM Joshua Bienvenue	24488	945511	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A . POM Dion Gaspard	Force: PO Dion Gaspard used physical force against § 87(2)(b)	A . Unfounded
B . POM Joshua Bienvenue	Force: PO Joshua Bienvenue used physical force against § 87(2)(b)	B . Alleged Victim Uncooperative

Case Summary

On December 14, 2009, § 87(2)(b) called in this complaint to the CCRB via the Call Processing System on behalf of her son, § 87(2)(b) although she was not a witness to the incident (encl. 3a-b). On December 14, 2009, § 87(2)(b) was with his friend, § 87(2)(b) at § 87(2)(b) in Brooklyn when they encountered officers on the stairwell. The following allegations resulted:

Allegation A: PO Dion Gaspard used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Gaspard used physical force against him by kicking his back, causing him to summersault down a staircase. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be **Unfounded**.

Allegation B: PO Joshua Bienvenue used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Bienvenue used physical force against § 87(2)(b) and although attempts were made to contact § 87(2)(b) he failed to appear for two scheduled appointments and an official statement was not obtained. Therefore, it is recommended that **Allegation B** be closed **Victim Uncooperative**.

As this case was eligible for mediation, on March 30, 2010, a telephone call was placed to the home telephone number of § 87(2)(b) and § 87(2)(b) during which mediation and investigation were discussed. On April 2, 2010, § 87(2)(b) called the undersigned and stated that she and § 87(2)(b) would like to proceed with an investigation, § 87(2)(b)

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

On December 14, 2009, § 87(2)(b) called in this complaint to the CCRB via the Call Processing System on behalf of her son, § 87(2)(b) although she was not a witness to the incident. On December 16, 2009, a telephone call was placed to § 87(2)(b) during which additional details pertaining to the incident were gathered, but § 87(2)(b) was only able to provide information that had been described to her by § 87(2)(b) § 87(2)(g)

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of his interview, and is a black male who is § 87(2)(b) with black hair and brown eyes.

CCRB Testimony

On January 12, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 4a-e). § 87(2)(g)

On December 14, 2009, at approximately 7:30pm, § 87(2)(b) was with his friend, § 87(2)(b) and a girl by the name § 87(2)(b) at a park, located on § 87(2)(b), between § 87(2)(b)

§ 87(2)(b) and § 87(2)(b), in Brooklyn. § 87(2)(b) was unable to provide the last name or contact information for § 87(2)(b). § 87(2)(b) was shaking his apartment keys and § 87(2)(b) told him to stop. § 87(2)(b) told § 87(2)(b) “Make me,” and she took the keys from him. In response, § 87(2)(b) took § 87(2)(b)’s hat and belt and ran with § 87(2)(b) into the apartment building, through Entrance B, where § 87(2)(b) resides, located at § 87(2)(b). § 87(2)(b) followed, but § 87(2)(b) and § 87(2)(b) exited the building through Entrance A.

§ 87(2)(b) and § 87(2)(b) walked to a store, Stop 1, where § 87(2)(b) purchased a bottle of juice. As § 87(2)(b) and § 87(2)(b) returned towards the park, they observed § 87(2)(b) speaking with two uniformed officers. § 87(2)(b) and § 87(2)(b) turned around and walked the opposite direction, and went to the apartment building where § 87(2)(b) resides, located at § 87(2)(b). § 87(2)(b) and § 87(2)(b) went to the § 87(2)(b), where their friend § 87(2)(b) resides and knocked on her apartment door. § 87(2)(b) was unable to recall the specific apartment in which § 87(2)(b) is a resident. § 87(2)(b) was changing her clothes, and instead of waiting for her, § 87(2)(b) and § 87(2)(b) decided to return to Stop 1.

As they were walking down the B stairway, § 87(2)(b) who was in front of § 87(2)(b) stopped at the stair landing as he noticed a shadow of a person on the staircase below. He attempted to look down at who was approaching, but was unable to see. An officer, identified through the investigation as PO Dion Gaspard of PSA 2, ran up the stairs and to § 87(2)(b) side and instructed him to place his hands behind his back approximately seven to eight times. With each instruction, § 87(2)(b) refused by verbally stating that he would not and by placing his hands at his sides. § 87(2)(b) attempted to run up the A stairway, but an officer, identified through the investigation as PO Joshua Bienvenue of PSA2, grabbed § 87(2)(b) by the shoulders to stop him. § 87(2)(b) described PO Gaspard as a black male with a slim build and bumps on his face. § 87(2)(b) described PO Bienvenue as a white male who was heavysset and bald. § 87(2)(b) was unable to provide any further physical descriptions of either PO Gaspard or PO Bienvenue.

PO Gaspard held § 87(2)(b) by both of his upper arms and placed him face forward against a wall, and instructed § 87(2)(b) to place his hands behind his back. § 87(2)(b) continued to refuse to comply with PO Gaspard’s instructions. PO Gaspard grabbed § 87(2)(b) by the back of his jacket collar and placed him in the corner to face PO Gaspard. PO Gaspard instructed § 87(2)(b) to place his hands behind his back, and as § 87(2)(b) refused, PO Gaspard grabbed the front of § 87(2)(b) jacket collar. PO Gaspard again instructed § 87(2)(b) to place his hands behind his back, but § 87(2)(b) asked, “For what?” while keeping his arms pressed against his sides. As PO Gaspard continued to hold § 87(2)(b) collar, § 87(2)(b) told PO Gaspard, “You’re choking me, let go.” However, § 87(2)(b) was able to speak and his breathing was not restricted, nor did he lose consciousness. PO Gaspard told § 87(2)(b) “I’m not letting go until you turn around and place your hands behind your back.” § 87(2)(b) continued to refuse.

PO Bienvenue came from staircase A and stopped § 87(2)(b) as he was attempting to run up staircase A. § 87(2)(b) became upset and said, “Get off me,” but § 87(2)(b) did not see PO Bienvenue touch § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) also appeared in the staircase, but did not intervene or have any interaction with the officers. PO Bienvenue told § 87(2)(b) to calm down. § 87(2)(b) attempted to run again, at which point PO Bienvenue grabbed him by the waist and told him to place his hands behind his back. § 87(2)(b) refused and asked, “What did we do?” PO Bienvenue again instructed § 87(2)(b) to place his hands behind his back, upon which § 87(2)(b) leaned against the wall with his hands pressed against his sides to prevent PO Bienvenue from applying handcuffs. § 87(2)(b) stated that PO Bienvenue grabbed § 87(2)(b) and slammed him to the floor. However, while § 87(2)(b) stated that while he saw § 87(2)(b) on the ground, he did not observe how § 87(2)(b) went to the ground, but was only later informed by both § 87(2)(b) and § 87(2)(b) at a later time that PO Bienvenue slammed him to the

ground. § 87(2)(b) added that he later observed a laceration on the left side of § 87(2)(b)'s face which he presumed was a result of being placed on the ground. PO Bienvenue picked up § 87(2)(b) by both of his shoulders to a standing position.

§ 87(2)(b) pushed PO Gaspard away by shoving his forearm against PO Gaspard's torso. § 87(2)(b) continued to run down the stairs. PO Gaspard pursued him and attempted to grab § 87(2)(b) but § 87(2)(b) pushed PO Gaspard's hand away. As he was running down the stairs, § 87(2)(b) felt PO Gaspard kick the middle of his back, causing him to summersault down the stairs until he stopped at the bottom. § 87(2)(b) looked up and saw that PO Gaspard was still running down the stairs. § 87(2)(b) stood and ran out of the back exit of the building and jumped over a gate to evade PO Gaspard. PO Gaspard followed § 87(2)(b) out of the building and over the gate. As § 87(2)(b) ran towards the park, he turned to see PO Gaspard stop and return inside the building. § 87(2)(b) used his cell phone to call his mother, § 87(2)(b).

§ 87(2)(b) saw PO Gaspard and PO Bienvenue exited the building with § 87(2)(b) who was handcuffed. PO Gaspard told § 87(2)(b) to, "Come here," which § 87(2)(b) refused. § 87(2)(b) walked home to his apartment building and § 87(2)(b) came outside. PO Gaspard approached and again instructed § 87(2)(b) to place his hands behind his back, with which § 87(2)(b) refused to comply. § 87(2)(b) told § 87(2)(b) to allow PO Gaspard to handcuff him, and § 87(2)(b) placed his hands behind his back and allowed PO Gaspard to apply handcuffs. § 87(2)(b) was arrested for assaulting a police officer and stated that he was informed that he had been accused of punching PO Gaspard in the lip. § 87(2)(b) denied doing so. He was detained in Spofford Juvenile Detention Center and released on conditional discharge. § 87(2)(b) did not receive any injuries as a result of this incident, with the exception of pain in his back that lasted approximately one week. However, § 87(2)(b) did not request nor seek medical attention at any time.

Attempts to Contact Civilians

§ 87(2)(b) females, whom he identified as § 87(2)(b) and § 87(2)(b) witnessed the incident, and also stated that officers used physical force against a friend, § 87(2)(b). However, on January 27, 2010 and on February 3, 2010, § 87(2)(b) failed to appear for two scheduled appointment without calling to cancel or reschedule, and an official statement could not be obtained.

§ 87(2)(b) was unable to provide telephone numbers or exact address pertaining to § 87(2)(b) or § 87(2)(b). On January 14, 2010, contact letters were mailed to § 87(2)(b) and § 87(2)(b) at the addresses provided by § 87(2)(b). On January 26, 2010, the letters were returned to the agency marked, "Return to Sender." On February 11, 2010 and April 2, 2010, telephone calls were placed to § 87(2)(b) mobile telephone number, during which messages were left. On February 18, 2010 and April 2, 2010, telephone calls were placed to § 87(2)(b) and § 87(2)(b) home number, during which messages were left. On February 18, 2010, March 3, 2010, and March 30, 2010, § 87(2)(b) was reached via telephone, during which she stated that neither she nor § 87(2)(b) were able to provide information pertaining to either § 87(2)(b) or § 87(2)(b). With each call, § 87(2)(b) agreed to obtain the information and contact the undersigned. However, neither § 87(2)(b) nor § 87(2)(b) have made any contact attempts to the CCRB, nor provided additional witness information at any time. Absent a last name or exact residence, searches of the Internet, Cole's Directory, and Lexis Nexis could not be conducted. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

NYPD Statement(s):

Subject Officer: PO DION GASPARD

- *PO Gaspard is a § 87(2)(b)-old black male who is § 87(2)(b) with black hair and hazel eyes. He is assigned to PSA 2.*
- *On December 14, 2009, PO Gaspard worked from 6:00pm to 2:25am on December 15, 2009, and was dressed in uniform. He was assigned to patrol foot post 148 of the § 87(2)(b) with PO Joshua Bienvenue.*

Memo Book

PO Dion Gaspard's memo book from December 14, 2009 states that at 8:00pm, he was approached by an unknown black female who complained that four perpetrators removed property from her person on the § 87(2)(b) of § 87(2)(b). At 8:05pm, PO Gaspard recorded that two black males were stopped regarding a possible robbery, and identified the males as § 87(2)(b) and § 87(2)(b). PO Gaspard's memo book further stated that both males became disorderly, flailing their arms and striking him in the face and obstructing the officers' investigation. According to his memo book, "complainant/victim left the location after recovery of personal property without notifying officers." At 8:10pm, PO Gaspard recorded two arrests effected on the § 87(2)(b) of § 87(2)(b). At 8:20pm, PO Gaspard returned to the PSA 2 station house (encl. 5a-d).

CCRB Testimony

On May 26, 2010, PO Dion Gaspard was interviewed at the CCRB (encl. 6a-c). On December 14, 2009, at approximately 8:00pm, PO Gaspard and PO Bienvenue had responded to § 87(2)(b) a NYCHA building, in order to conduct vertical patrol. Two stairwells, A and B, are located in the building. PO Gaspard explained that the stairwells separate, but connect on each landing. He and PO Bienvenue each began walking up the two stairwells. Upon reaching the § 87(2)(b), a young black female, identified through the investigation as § 87(2)(b), approached PO Gaspard and PO Bienvenue and stated that four black males had taken her hat and mp3 player from her on the § 87(2)(b) of the location. PO Gaspard stated that § 87(2)(b) provided physical descriptions of the four males, but he was unable to recall the details of the description she provided.

PO Gaspard and PO Bienvenue continued to walk up the two stairways. Once PO Gaspard reached the landing between the § 87(2)(b) floors, he observed four black males matching the description § 87(2)(b) provided. Immediately, an unidentified male ran up the stairs and another unidentified male ran past PO Gaspard and down the stairs. The remaining two males, identified through the investigation as § 87(2)(b) and § 87(2)(b), also attempted to run past PO Gaspard, but he extended his arms and grabbed both of them in a "bear hug," to prevent them from fleeing. PO Gaspard called to PO Bienvenue for assistance, as both § 87(2)(b) and § 87(2)(b) were flailing their bodies and pushing against PO Gaspard in an attempt to break free of his grasp.

As PO Bienvenue arrived, he grabbed § 87(2)(b) by the shoulder. § 87(2)(b) immediately began to struggle with PO Bienvenue on the landing, as he repeatedly pushed PO Bienvenue and attempted to pull his body away. § 87(2)(b) began to flail his arms, making it difficult for PO Gaspard to maintain his grasp of § 87(2)(b)'s shoulder. § 87(2)(b) and PO Gaspard struggled against the wall of the landing, pushing one another back and forth. PO Gaspard did not corner § 87(2)(b) or grab him by the front of his collar at any time. PO Gaspard did not make physical contact with § 87(2)(b)'s head or neck at any time, and did not place him in a headlock or chokehold, nor did he observe any other officer do so. PO Gaspard did not observe § 87(2)(b)

complain of pain or loss of breath at any time. § 87(2)(b) arm struck PO Gaspard in the mouth, but PO Gaspard was unable to state as to whether § 87(2)(b) intentionally struck or punched him. PO Gaspard sustained pain to his mouth as a result. § 87(2)(b) then pushed PO Gaspard and attempted to run down the stairs. PO Gaspard lunged after § 87(2)(b) and grabbed the back of his jacket, but realizing that § 87(2)(b) could remove his jacket and continue to run, PO Gaspard grabbed his shoulder. PO Gaspard did not kick § 87(2)(b) at any time, nor did he observe any other officer do so.

§ 87(2)(b) stumbled down a step, causing PO Gaspard to lose his grasp of § 87(2)(b). § 87(2)(b) continue to run and PO Gaspard pursued him. § 87(2)(b) exited the rear door of the apartment building, and PO Gaspard observed him run across the adjacent basketball court. PO Gaspard returned upstairs to assist PO Bienvenue with § 87(2)(b).

As PO Gaspard walked up the steps and approached the § 87(2)(b) landing, PO Bienvenue was walking down the stairs with § 87(2)(b) in handcuffs. He did not require further assistance. PO Gaspard was unable to provide any interaction that took place between PO Bienvenue and § 87(2)(b) as his attention had been focused on § 87(2)(b). PO Gaspard did not come into physical contact with § 87(2)(b) at any time, and did not observe any injuries nor hear § 87(2)(b) complain of pain.

As PO Gaspard and PO Bienvenue walked with § 87(2)(b) in front of the building, a female, identified through the investigation as § 87(2)(b) approached and asked what was happening. § 87(2)(b) stated that § 87(2)(b) had contacted her, and PO Gaspard explained that § 87(2)(b) had resisted arrest for removing property from another person. § 87(2)(b) called § 87(2)(b) and he walked back to the location. § 87(2)(b) instructed § 87(2)(b) to allow PO Gaspard to handcuff him. § 87(2)(b) complained, “Mom, can’t you get me out of this?” but allowed PO Gaspard to apply handcuffs.

PO Gaspard placed § 87(2)(b) into the rear of a patrol car. He then walked up to the § 87(2)(b), where a hat and mp3 player were recovered. Upon exiting the apartment building, PO Gaspard realized that § 87(2)(b) had left the location without notifying any officers.

PO Gaspard and PO Bienvenue transported § 87(2)(b) and § 87(2)(b) to the PSA 2 station house. Upon arriving to the stationhouse, PO Gaspard offered medical attention to both § 87(2)(b) and § 87(2)(b) due to their juvenile status, but both refused.

Subject Officer: PO JOSHUA BIENVENUE

- PO Bienvenue is a § 87(2)(b)-old white male who is § 87(2)(b) with brown hair and brown eyes. He is assigned to PSA 2.
- On December 14, 2009, PO Bienvenue was dressed in uniform and worked from 6:00pm to 2:35a on December 15, 2009.. He was assigned to foot post number 14A, located at the § 87(2)(b), with PO Dion Gaspard. PO Bienvenue was not assigned to a motor vehicle.

Memo Book

PO Bienvenue’s memo book entries from December 14, 2009 state that at 8:00pm, he was approached by an unknown female who alleged that four perpetrators removed property from her person on the § 87(2)(b) of § 87(2)(b) in Brooklyn. At 8:05pm, PO Bienvenue recorded that two black males, § 87(2)(b) and § 87(2)(b) were stopped in regards to suspicion of robbery. PO Bienvenue noted that “both males became disorderly and flailed their arms, striking PO Gaspard in the face, and obstructed investigation.” The entry further states that the complainant left the location after retrieving property without notifying officers.” At 8:10pm, PO Bienvenue recorded two arrests made by PO Gaspard (encl. 7a-c).

CCRB Testimony

On July 7, 2010, PO Joshua Bienvenue was interviewed at the CCRB (encl. 8a-b), § 87(2)(b).

As PO Bienvenue walked down the stairs of § 87(2)(b) from the § 87(2)(b), a male, identified through the investigation as § 87(2)(b) ran up the stairs. PO Bienvenue stopped § 87(2)(b) and walked with him down to the § 87(2)(b) platform. Upon reaching the § 87(2)(b) platform, PO Bienvenue observed PO Gaspard struggling with a male, identified through the investigation as § 87(2)(b). § 87(2)(b) was flailing his arms and resisting PO Gaspard's attempts to restrain him. PO Gaspard attempted to grab § 87(2)(b) by the arms and upper body, but § 87(2)(b) continued to resist. PO Bienvenue asked PO Gaspard if he would like § 87(2)(b) to be stopped pertaining to the investigation, which PO Gaspard affirmed. PO Bienvenue attempted to handcuff § 87(2)(b) upon which § 87(2)(b) became resistant and began to move his body and flail his arms, preventing PO Bienvenue from restraining him. PO Bienvenue placed § 87(2)(b) in a bear-hug in order to restrain his arms.

PO Gaspard and § 87(2)(b) continued to struggle and § 87(2)(b) used one hand to strike PO Gaspard in the face. PO Gaspard continued to attempt to restrain § 87(2)(b)'s hands. PO Gaspard did not use any further physical force against § 87(2)(b). PO Bienvenue did not observe PO Gaspard make physical contact with § 87(2)(b)'s head or neck, nor did he observe PO Gaspard grab § 87(2)(b)'s collar, nor did he observe any other officer do so. PO Bienvenue did not observe PO Gaspard place § 87(2)(b) in a headlock or chokehold, nor did he observe any other officer do so. § 87(2)(b) began to run down the stairs. PO Gaspard instructed PO Bienvenue to handcuff § 87(2)(b) as he pursued § 87(2)(b) down the stairs. PO Bienvenue did not observe PO Gaspard attempt to grab or kick § 87(2)(b) while walking down the stairs, nor did he observe any other officer do so. PO Bienvenue did not observe § 87(2)(b) trip or fall on the stairs at any time.

§ 87(2)(b) continued to torque his body and resist PO Bienvenue's grasp. PO Bienvenue used his grasp of § 87(2)(b)'s upper body to bring him to the ground. § 87(2)(b) continued to flail his arms and move his body, preventing PO Bienvenue from applying handcuffs. However, PO Bienvenue was ultimately able to apply handcuffs to § 87(2)(b) without assistance. PO Bienvenue did not recall observing injuries on either § 87(2)(b) or § 87(2)(b) at any time, nor did he hear either complain of pain or injury.

NYPD Document(s)

SPRINT and SPRINT Index

SPRINT § 87(2)(b) indicates that on December 14, 2009, at 8:02pm, foot post 148 of PSA 2 made a radio call of a "10-85," additional assistance needed. At 8:09pm, PSA 2 foot post 148 reported two arrests. At 1:04am, the arrest was verified (encl. 9a-c).

Juvenile Report

Although requests were made to obtain the juvenile reports pertaining to the arrests of § 87(2)(b) and § 87(2)(b) the requests were returned stating that no juvenile reports could be found on file (encl.14j-l).

PSA 2 Command Log

The PSA 2 command log from December 14, 2009 contains two entries at 8:115pm, for the arrests of § 87(2)(b) and § 87(2)(b) by PO Dion Gaspard. According to the entries, § 87(2)(b) was charged § 87(2)(b), and § 87(2)(b) was charged

§ 87(2)(b). Both entries state that no force was used against § 87(2)(b) or § 87(2)(b) and no notation was made in regards to their physical appearance (encl. 11).

Arrest for Incident and Disposition

- § 87(2)(a) FCT § 380.1

Civil Proceedings

- An inquiry to the New York City Comptroller's Office yielded negative results for a notice of claim filed by § 87(2)(b) or § 87(2)(b)

§ 87(2)(a) Fam. Ct. Act § 381.3

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. 2a-b).

Subject Officer(s) CCRB History

- PO Dion Gaspard has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 1a).
- PO Joshua Bienvenue has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 1b).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) stated that of the two officers he encountered, who he described as a black male and a white male, he specified that the black male officer used physical force against him. § 87(2)(b) provided a shield number at the time of her original complaint, and a search of the CCRB database (CTS) identified PO Dion Gaspard. § 87(2)(g)

§ 87(2)(b) further alleged that the white male officer used physical force against § 87(2)(b) § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A: PO Dion Gaspard used physical force against § 87(2)(b)

